

**FAMILY COURT OF THE STATE OF NEW YORK
CITY OF NEW YORK: COUNTY OF QUEENS**

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In the Matter of:

████████████████████,

File No. ██████████

Docket No. ██████████

A Person Alleged to be a
Juvenile Delinquent.

**DECISION AND ORDER
AFTER SUPPRESSION
HEARING**

Respondent.

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NOTICE: PURSUANT TO SECTION 1113 OF THE FAMILY COURT ACT, AN
APPEAL MUST BE TAKEN WITHIN 30 DAYS OF RECEIPT OF THE
ORDER BY APPELLANT IN COURT, 35 DAYS FROM THE DATE OF
MAILING OF THE ORDER TO APPELLANT BY THE CLERK OF
COURT, OR 30 DAYS AFTER SERVICE BY A PARTY OR THE
ATTORNEY FOR THE CHILD UPON THE APPELLANT, WHICHEVER
IS EARLIEST.

Friederwitzer, L.

The matter was initially before Judge Connie Gonzalez, who granted a remand after a probable cause hearing. Judge Gonzalez later granted Respondent's oral motion made on June 20, 2023, for a combined Dunaway/Mapp hearing seeking suppression of the firearm recovered from the Respondent as fruit of an unlawful seizure by law enforcement.¹

Judge Gonzalez was unavailable to preside over the suppression hearing itself. Thus, the Dunaway/Mapp hearing was held before this court on July 3, 2023, and the matter was adjourned to July 5, 2023, for summations. This Court issued its oral ruling on the same day. The Court's written decision supplementing its oral ruling is set forth below.

¹ The Presentment Agency requested said pre-trial suppression motion to be made in writing. In consideration of the Respondent's remand status, the Court granted the oral application over the Presentment Agency's objection. On its own initiative, upon review of CPL § 710.60(1), FCA § 330.2, and related case law, the Court subsequently alerted counsel to the oversight and provided remedial alternatives. The Presentment Agency thereafter consented to waive the written requirements of CPL § 710.60(1) and proceed with the suppression hearings as scheduled.

BACKGROUND

The Respondent was arrested in the early morning of June 5, 2023. A pre-petition application was heard on June 6, 2023, whereupon the Respondent was remanded. The instant petition was filed on June 9, 2023. The petition charges the Respondent with committing acts which, if committed by an adult, would constitute the crimes of:

Criminal Possession of a Weapon in the Second Degree (P.L. § 265.03(1)(b)), Criminal Possession of a Weapon in the Second Degree (P.L. § 265.03(3)); Criminal possession of a Firearm (P.L. § 265.01-b(1)), Criminal Possession of a Weapon in the Fourth Degree (P.L. § 265.01(1)), Criminal Possession of a Weapon in the Fourth Degree (P.L. § 265.01(1)), Possession of Pistol or Revolver Ammunition (N.Y.C. Administrative Code § 10-131(i)(3), Criminal Possession of a Weapon in the Fourth Degree (P.L. § 265.01(2)) and Unlawful Possession of Weapons by Persons under Sixteen (P.L. § 265.05).

The petition, together with the supporting deposition, alleges that on June 5, 2023, at approximately 2:25 a.m., in the county of Queens, New York, the Respondent was in possession of a loaded 9MM firearm on his person.

EVIDENCE

The Court received the following items into evidence at the Dunaway/Mapp hearing:

Petitioner's Exhibit 1 – A firearm, identified as the firearm recovered by Officer Steven Mercaldo and vouchered by Officer Jeremy Yang.

Petitioner's Exhibit 2 – A USB drive containing Officer Ryan Loeffel's body-worn camera footage from the incident and entered into evidence without objection.

Respondent Exhibit A – A photo, taken by Officer Ryan Loeffel of the stopped vehicle from the back, showing a California-issued license plate.

THE HEARING

The Presentment Agency called one witness, Officer Ryan Loeffel. The Respondent did not call any witnesses.

After considering Officer Loeffel's testimony and reviewing the body-worn camera

footage, as well as the photo entered in evidence at the hearing, this Court finds that the Presentment Agency failed to meet their burden and grants the Respondent's motion to suppress the firearm, and makes the following findings of fact and conclusions of law:

Officer Loeffel has been a police officer with the New York City Police Department for approximately two years and a half years. Officer Loeffel's current assignment is with the Patrol Border Queens North Community Response Team, which addresses robberies, burglaries, fake plates, and stolen cars. Prior to this assignment, Officer Loeffel worked at the 114th precinct for two years. Officer Loeffel has made approximately nine arrests for gun possession during the span of his career.

On June 5, 2023 at approximately 2:25 a.m., Police Officer Ryan Loeffel of the NYPD was on duty in an unmarked patrol car with two partner officers, Officer Mercaldo and Officer Rahman. Officer Loeffel was driving the vehicle southbound on Steinway Street in Queens, New York.² Officer Loeffel testified that it was "dark but lit" because it was an industrial business area that was illuminated.³

Officer Loeffel observed a red Dodge Dart traveling northbound on Steinway Street. The Dodge Dart caught Officer Loeffel's attention due to its loud exhaust. Officer Loeffel made a U-turn and followed behind the Dodge Dart.⁴ Upon approaching the rear of the Dodge Dart, Officer Loeffel observed that the vehicle had a temporary California license plate that was expired.⁵ He testified that the large plate numbers are on the temporary tag, with smaller print for the expiration date above or to the sides. (Tr. 48).

Officer Loeffel activated his emergency lights and siren and conducted a traffic stop of the Dodge Dart. (Tr. 7-8). The Dodge Dart pulled over in response to the lights and siren. Officer Loeffel approached the driver's side window while Officer Mercaldo approached the front passenger window, and Officer Rahman approached the rear passenger window. There were three male occupants in the vehicle.⁶ Officer Loeffel testified that when he and the other officers exited

² Tr. 5-7.

³ Tr. 40.

⁴ Tr. 7.

⁵ *Id.*

⁶ Tr. 8-9.

their vehicle and approached the Dodge Dart, they were using flashlights to see.⁷

When first asked where they were going, the occupants said they were going to Club Melody in Queens to meet some friends.⁸ Officer Loeffel observed that the rear passenger side window was broken and covered by a t-shirt. Officer Loeffel asked the driver about the broken window. The driver, not the respondent, stated that he had locked his keys in the car and broken the window to gain entry.⁹

Officer Loeffel requested the driver's license and registration. The driver provided his license, which Officer Loeffel handed to Officer Mercado to run through the system. Officer Loeffel did not recall if he or Officer Rahman requested or obtained the vehicle's registration documents.¹⁰ Officer Loeffel noticed several Corona beer bottles on the floor behind the driver's seat. He also noticed a spilled stain on the rear seat that appeared damp.¹¹ Officer Loeffel instructed the three occupants to step out of the vehicle. The driver exited first. The rear passenger, identified in court as Respondent [REDACTED] ("Respondent"),¹² asked Officer Loeffel "me too?" before exiting the vehicle.¹³ The Respondent was sitting in the small back seat with his knees pressed against the front passenger seat.¹⁴

As [REDACTED] exited the rear passenger seat, Officer Loeffel observed him kick an object under the front passenger seat. From the driver's side, Officer Loeffel observed the object to be a white box with a "Glock" logo.¹⁵ During cross, defense counsel questioned Officer Loeffel about when exactly he saw the Glock logo. Loeffel could not specify whether he saw the logo before or after [REDACTED] exited the vehicle.¹⁶

Officer Loeffel proceeded to the passenger side of the Dodge Dart, and from the back seat, he reached under the front passenger seat to retrieve the box. Unable to retrieve it, he continued his search from the front passenger side. Officer Loeffel testified that he pulled out a white Glock

⁷ Tr. 42.

⁸ Tr. 44-46.

⁹ Tr. 8-9, 43-44.

¹⁰ Tr. 42-43, 47.

¹¹ Tr. 14-15, 49-50.

¹² Tr. 22-25.

¹³ Tr. 15-16, 51-52.

¹⁴ Tr. 50-51.

¹⁵ Tr. 16-17.

¹⁶ Tr. 55-56.

box containing a firearm instruction manual and tools, but no firearm.¹⁷ When defense counsel cross-examined Officer Loeffel about the box, Loeffel acknowledged that when he reached under the seat and pulled out the object, it was actually a flat piece of cardboard rather than an intact box.¹⁸

All three occupants stood by the rear bumper area of the Dodge Dart after exiting the vehicle with Officer Rahman while Officer Loeffel searched the front passenger area, and Officer Mercaldo was on the driver's side.¹⁹ Loeffel confirmed the occupants were "standing at the back of the vehicle" and were not handcuffed or physically restricted while the search was conducted.²⁰ The officers did not call for backup before or during the search when they suspected a gun was present.²¹

Officer Loeffel searched the surrounding rear seat area but did not locate a firearm. He directed Officer Mercaldo to search the rear center console. Officer Mercaldo opened the rear center console next to where Dominguez Ramos had been seated and located a firearm inside of a bag.²² The three occupants were placed under arrest. Officer Loeffel transported the Dodge Dart with the recovered firearm back to the 114th precinct as evidence.²³ The firearm was logged as voucher #4001001587.²⁴

LEGAL ANALYSIS

At a Mapp/Dunaway suppression hearing, the Presentment Agency has the initial burden of going forward to establish, by credible evidence, the legality of the police conduct in the first instance. People v. Walls, 37 NY3d 987 (2021); People v. Newson, 155 AD3d 768 (2d Dep't 2017). Once the Presentment Agency has met this burden, the Respondent then "bears the ultimate burden of proving that the evidence should not be used against him." People v. Berrios, 28 NY2d 361, 367 (1971); People v. Casey, 149 AD3d 770 (2d Dep't 2017).

¹⁷ Tr. 20-21.

¹⁸ Tr. 53-55.

¹⁹ Tr. 16, 19-20.

²⁰ Tr. 57.

²¹ Tr. 56.

²² Tr. 21-22, 57-58.

²³ Tr. 23.

²⁴ Tr. 24.

The Legality of the Vehicle Stop

“An automobile stop ‘is a seizure implicating constitutional limitations.’” People v. Hinshaw, 35 NY3d 427, 430 (2020) quoting People v. Spencer, 84 NY2d 749, 752 (1995). “Automobile stops are lawful [] when based on probable cause that a driver has committed a traffic violation; when based on a reasonable suspicion that the driver or occupants of the vehicle have committed, are committing, or are about to commit a crime; or, when conducted pursuant to nonarbitrary, non-discriminatory, uniform highway traffic procedures.” People v. Hinshaw, 35 NY3d 427, 430 (2020) [internal quotations and citations omitted]; People v. Robinson, 97 NY2d 341 (2001). Where the traffic stop is supported by probable cause, “neither the primary motivation of the officer nor a determination of what a reasonable traffic officer would have done under the circumstances is relevant.” People v. Wright, 98 NY2d 657, 658 (2002) quoting People v. Robinson, 97 NY2D 341, 349 (2001); See generally People v. Baksh, 113 AD3d 626 (2d Dep’t 2014).

The Presentment Agency argues that the police had probable cause to stop the vehicle based on Officer Loeffel's testimony that he observed the temporary license plate was expired. On the other hand, the Respondent contends that the record fails to establish a sufficient basis to determine that Officer Loeffel was able to observe the expiration date on the license prior to the stop. The Respondent also points to body camera footage, where Officer Loeffel is seen examining the license plate post-stop and commenting on its expired status.

This court finds that the record lacks substantial detail, inhibiting a comprehensive evaluation of Officer Loeffel's credibility pertaining to the stop's legality. The record is unclear as to exactly when, how, and under what circumstances Officer Loeffel was able to observe the expiration date on the temporary tag and determine it was expired. Officer Loeffel testified it was approximately 2:25 AM and dark, though the area was somewhat illuminated. However, there is insufficient testimony regarding the distance between the police vehicle and the Dodge Dart, the visibility conditions, the length of time following the Dodge Dart, any information of Officer Loeffel's visual acuity on the night in question, including whether he required corrective lenses and if so, whether he was wearing them.

These are not inconsequential details. Rather, they assist this court in assessing the credibility of Officer Loeffel's account, and in turn, in gauging the legality of the stop. The court cannot, and should not, fill gaps in the record with inferences.

The court acknowledges that should the record provide a sufficient basis for credibility determination and the witness is found to be credible regarding the legality of the stop, the observed expiration of the temporary license plate would indeed justify a legal stop. However, this court finds that the records lack a sufficient basis for a credibility determination on the issue of the legality of the stop.

The Legality of the Vehicle Search

1. Order to Exit the Vehicle

Officer Loeffel directed the three occupants in the red Dodge Dart to exit the vehicle. During a traffic stop, an officer may direct an occupant of a lawfully stopped vehicle to exit said vehicle. People v. Graves, 142 AD3d 559, 559 (2d Dep't 2016). Such an order is permitted as a precautionary measure, and without the need for particularized suspicion, in light of the recognized "heightened dangers faced by investigating police officers during traffic stops." People v. Graves, 142 AD3d 559, 559 (2d Dep't 2016) quoting People v. Garcia, 20 NY3d 317, 321 (2012). In the case at hand, Officer Loeffel's directive to the occupants to exit the vehicle is lawful. However, the officer's subsequent actions must also meet legal standards to ensure their lawfulness.

2. Warrantless Searches

Next, this court must assess whether Officer Loeffel's initial warrantless search for the box, and the subsequent search for the firearm were lawful. The burden to uphold a warrantless search is significant: "[a]ll warrantless searches presumptively are unreasonable per se, and, thus, [w]here a warrant has not been obtained, it is the People who have the burden of overcoming this presumption of unreasonableness" People v Chy, 184 AD3d 664, 666 (2d Dept 2020)(citations omitted). Here, the Presentment Agency bears the burden of proving that the police conduct is justified by one of the exceptions to the warrant requirement. *See*, People v. Pettinato, 69 N.Y.2d 653, 654, (1986) ("Because a warrantless intrusion by a government official is presumptively unreasonable, it is the People's burden in the first instance to establish justification."). That burden is even greater when the police had an opportunity to obtain a warrant. *See* People v Vernon B.,

954 N.Y.S.2d 835 (Crim Ct 2012).

A. Probable Cause

Under the Fourth Amendment of the United States Constitution, “a search conducted without a warrant issued by an impartial Magistrate is per se unreasonable unless one of the established exceptions applies.” People v. Galak, 81 N.Y.2d 463, 466–467 (1993). “One such exception is the so-called ‘automobile exception’, under which State actors may search a vehicle without a warrant when they have probable cause to believe that evidence or contraband will be found there.” *id.* at 467.

Certain lawful items associated with guns, such as holsters, (People v Johnson, 54 NY2d 958, 959 [1981]) or practice targets and bulletproof vests, alone, do not supply probable cause to search. People v Batista, 88 NY2d 650 [1996]; *see also* People v Ellis, 62 NY2d 393 (1984); On the other hand, the courts have found that the presence of bullets, in conjunction with other observations, support a finding of probable cause. *See* People v. Shin, 192 AD2d 684, 685 (2d Dept 1993). Appellate Courts articulated a distinction for the presence of actual bullets being “more immediately associated with the presence of a deadly weapon than other incidentally related items such as holsters and practice targets bullets have no other practical use than as ammunition for a deadly weapon” Ellis at 397.

This court remains unconvinced that merely observing a white box bearing the "Glock" logo, which was later found devoid of a firearm or ammunition, would provide Officer Loeffel with sufficient probable cause to initiate a search.

B. Substantial Likelihood of a Weapon and Specific Threats to Officer’s Safety

In examining Officer Loeffel's warrantless vehicle search without probable cause, this court must now consider the legal principles established in People v Torres, 74 NY2d 224 (1989); where “[a]bsent probable cause, the police are allowed to conduct a limited intrusion into the vehicle only if the totality of the information available supports a reasonable conclusion that there is a substantial likelihood of a weapon within the vehicle that poses an actual and specific threat to the officers’ safety.” People v Scott, 216 AD3d 552, 553 (1st Dept 2023);

In People v Carvey, 89 NY2d 707 (1997), the court found an actual and specific threat

where the defendant, in addition to suspicious actions, was wearing a bulletproof vest, a clear signal of intent to use an available firearm. Conversely, in the case at hand, the Respondent's actions are significantly less alarming. Kicking a box—bearing the Glock logo or not—without further incriminating behaviors, fails to meet the threshold of a distinctive threat established in Carvey.

In People v Mundo, 99 NY2d 55 (2002), the court found that a driver's disobedience of lawful orders, coupled with a lack of concern for pedestrian safety and furtive movements, presented a tangible threat to the officers' safety. However, no such series of events transpired in the instant matter. The Respondent did not disobey the officers, nor did his actions suggest a lack of regard for safety or law.

Similarly, People v. Hardee, 126 AD3d 626 (1st Dept. 2015) aff'd, 30 NYd 991 (2017), the court held that the defendant's reckless driving, continual glancing inside the car, non-compliance with police orders, and resistance to handcuffing created a discernable risk and thus justified a car search under Torres. In contrast, the Respondent did not exhibit such non-compliance or resistance, nor was there reckless driving involved.

Officer Loeffel's observation of the Glock-logo box being kicked by the Respondent, construed as "furtive" movement, does not rise to the level of the specific danger necessitated by Torres. As clarified in People v Newman, 96 AD3d 34, 42 (1st Dept 2012), "furtive" behavior cannot validate intrusive vehicle searches based on mere police conjecture. Officer Loeffel's interpretation of the Respondent's action as furtive is, therefore, problematic and too broadly construed.

The court in Torres further necessitates an actual and specific danger created by the weapon, beyond the mere possibility that the respondent may re-enter the vehicle and have the weapon readily available. Upon careful review of the case facts, it appears that Officer Loeffel's suspicion of the Respondent posing a specific, imminent threat is unfounded.

It is important to highlight that when Officer Loeffel's started his warrantless search, the vehicle's occupants were not under arrest. Instead, they simply positioned behind their car, unrestrained by handcuffs, and displaying compliance, while under the supervision of a solitary officer. Before retrieving the item under the front seat, Officer Loeffel did not manifest any

indications of concern for his safety. He neither called for backup nor alerted his fellow officers of any imminent danger. This behavior contrasts significantly with the necessary prerequisites for a warrantless search as dictated by the precedent set forth in Torres, which mandates a clear and present danger to the officers' safety.

It should be noted that the white box that caught Officer Loeffel's initial attention was never found. What Officer Loeffel did retrieve from under the passenger seat was a piece of cardboard associated with a Glock firearm—a manual, not a weapon itself. With no firearm in sight, Officer Loeffel persisted in his warrantless search, this time informing his fellow officers of his findings and enlisting the help of Officer Mercaldo to search the car with him.

This second search seems to have been prompted not by a direct threat, but rather by the discovery of the Glock-related manual. This search does not appear to meet the requirements for a warrantless search under the "automobile exception" or as a "search incident to arrest." The occupants were not under arrest at the time. They continued to comply with directives, did not speak or act in a threatening manner, and did not present any exigent circumstances necessitating a warrantless search. As a result, all factors indicate that the officers could have secured the vehicle and sought a warrant if they believed they had sufficient grounds for further investigation. However, instead, they proceeded with the search, even extending it to the rear center console, and subsequently located a firearm.

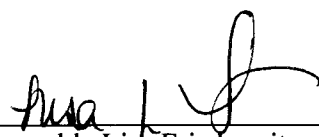
In conclusion, this court finds that the warrantless search conducted by Officer Loeffel falls short of the criteria outlined in the Torres decision. The facts of this case do not support a conclusion that there was a substantial likelihood of a weapon within the vehicle that posed an actual and specific threat to the officers' safety."

For the above reasons, it is;

ORDERED, that the Respondent's request to suppress the firearm recovered from the vehicle is GRANTED.

This constitutes the decision and order of the Court.

Dated: Jamaica, New York
July 18, 2023



Honorable Lisa Friederwitzer, J.F.C.